



May 2, 2024

Chief, Foreign Investment Review Section ("FIRS")
Deputy Chief, Compliance and Enforcement (FIRS)
On Behalf of the Assistant Attorney General for National Security
U.S. Department of Justice
National Security Division
175 N Street, NE
Washington, DC 20530
Compliance.Telecom@usdoj.gov

Subject: Element8 Technology Investment Group, Inc. and AtLink Services, LLC
FCC ICFS Docket No. ISP-PDR-20230807-00007 and WC Docket No. 23-268
(TT 23-039 to -040)

Petition for Declaratory Ruling ("PDR" or "Petition") pursuant to Section 310(b)(4) of the Communications Act of 1934, as amended, 47 U.S.C. § 310(b)(4), and Section 1.5000(a)(1) of the Commission's rules, 47 C.F.R. § 1.5000(a)(1)
and
Application to Transfer Control of Domestic Section 214 Authorization ("Application") pursuant to Section 214 of the Communications Act of 1934, as amended, 47 U.S.C. § 214, and sections 63.03 and 63.04 of the Commission's Rules, 47 C.F.R. §§ 63.03, 63.04

Dear Sir/Madam:

This Letter of Agreement ("LOA" or "Agreement") sets forth the commitments that Element8 Technology Investment Group, Inc. ("Element8") and AtLink Services, LLC ("AtLink") (collectively, "Petitioners") make to the U.S. Department of Justice ("USDOJ"), including the Federal Bureau of Investigation ("FBI"), to address national security and law enforcement risks arising from the above-referenced Petition and Application to the Federal Communications Commission ("FCC") requesting that the Commission exercise its discretion to permit AtLink to exceed the 25 percent foreign ownership benchmark as set forth in section 310(b)(4) of the Communications Act of 1934, as amended, 47 U.S.C. § 310(b)(4), consistent with section 310(b)(4) of the Act and Part 1 of the Commission's rules; and to request authorization, pursuant to section 214 of the Communications Act of 1934, as amended, 47 U.S.C. § 214, and sections 63.03 and 63.04 of the Commission's Rules, 47 C.F.R. §§ 63.03, 63.04, to transfer control of AtLink to Element8.

This Letter of Agreement ("LOA" or "Agreement") sets forth the commitments that Petitioners make to the U.S. Department of Justice ("USDOJ"), including the Federal Bureau of Investigation ("FBI"), to address national security and law enforcement risks arising from the above-referenced Petition and Application to the FCC.

Petitioners certify as true and correct, under penalties outlined in 18 U.S.C. § 1001, all statements they or their representatives have made to USDOJ, including the FBI, the U.S. Department of Defense, the U.S. Department of Homeland Security, and the FCC in the course of the review of the above-referenced Petition and Application conducted pursuant to Executive Order 13913.¹ Petitioners hereby adopt those statements as the basis for this LOA.

Definitions

1. For purposes of this LOA, the following definitions apply:

a. “Access” means: (1) to enter a location; or (2) to obtain, read, copy, edit, divert, release, affect, alter the state of, or otherwise view data or systems in any form, including through information technology (“IT”) systems, cloud computing platforms, networks, security systems, and equipment (software and hardware). For the avoidance of doubt, Access shall be construed broadly to include rather than exclude considered conduct.

b. “Call Detail Record” (“CDR”) means the data records or call log records that contain information about each call made by a user and processed by a switch, call manager, or call server.

c. “Customer Proprietary Network Information” (“CPNI”) means as set forth in 47 U.S.C. § 222(h)(1).

d. “Cybersecurity Incident Response Plan” means a plan or processes put in place to develop and implement the appropriate activities to take action regarding a detected cybersecurity event that has been determined to have an impact on AtLink prompting the need for response and recovery.

e. “Date of FCC Approval” means the date on which the FCC releases a public notice granting the FCC Application and Petition. If the FCC releases public notices granting the FCC Application and Petition on multiple dates, the latest such date will be the “Date of FCC Approval.”

f. “Domestic Communications” (“DC”) means:

- (i) Wire Communications or Electronic Communications (whether stored or not), as defined by 18 U.S.C. § 2510, from one location within the United States, including its territories, to another location within the United States; or
- (ii) The U.S. portion of a Wire Communication or Electronic Communication (whether stored or not) that originates or terminates in the United States or its territories.

g. “Domestic Communications Infrastructure” (“DCI”) means any system of Petitioners that supports any communications originating or terminating in the United States, including its territories, including any transmission, switching, bridging, and routing equipment, and any associated software (with the exception of commercial-off-the-shelf (“COTS”) software

¹ 85 Fed. Reg. 19643 (Apr. 8, 2020).

used for common business functions, *e.g.*, Microsoft Office) used by, or on behalf of, Petitioners to provide, process, direct, control, supervise, or manage DC, but would not include the systems of entities for which Petitioners have a contracted arrangement for interconnection, peering, roaming, long-distance, or wholesale network Access.

h. “Electronic Surveillance” means:

- (i) The interception of wire, oral, or electronic communications as set forth in 18 U.S.C. §§ 2510(1), (2), (4), and (12), respectively, and electronic surveillance as set forth in 50 U.S.C. § 1801(f);
- (ii) Access to stored wire or electronic communications, as referred to in 18 U.S.C. § 2701 et seq.;
- (iii) Acquisition of dialing, routing, addressing, or signaling information through pen register or trap and trace devices or other devices or features capable of acquiring such information pursuant to law as set forth in 18 U.S.C. § 3121 et seq. and 50 U.S.C. § 1841 et seq.;
- (iv) Acquisition of location-related information concerning a subscriber or facility;
- (v) Preservation of any of the above information pursuant to 18 U.S.C. § 2703(f); and
- (vi) Access to or acquisition, interception, or preservation of, wire, oral, or electronic communications or information as described in (i) through (v) above and comparable state laws.

i. “Foreign” means non-United States, or its territories.

j. “Foreign Person with Access” means any non-U.S. Person (including management, owners, employees, contractors, Service Provider employees, Principal Equipment provider employees, other third-party employees, or any other natural person) who has Access to: (1) U.S. Records; (2) DCI (to include, but not be limited to, Principal Equipment, network management system(s), logging/auditing systems, fault management systems, and network interfaces that allow read or write Access to the management, production, and/or operational networks); (3) physical facilities under Petitioners’ control; (4) Lawful U.S. Process; or (5) DC.

k. “Geolocation Data” means any information Petitioners collect from their customers regarding a customer’s location or the customer’s device location.

l. “Government” means any government, or governmental, administrative, or regulatory entity, authority, commission, board, agency, instrumentality, bureau, or political subdivision, and any court, tribunal, or judicial or arbitral body.

m. “Internet Protocol Detail Record” (“IPDR”) means information about internet protocol-based usage and other activities that can be used by operation support systems

("OSS") and business support systems ("BSS") by recording data statistics that provide network insight on capacity, subscriber usage, and proactive network maintenance.

n. "Lawful U.S. Process" means U.S. federal, state, or local court orders, subpoenas, warrants, processes, directives, certificates, or authorizations, and other orders, legal process, statutory authorizations, and certifications for Electronic Surveillance, physical search and seizure, production of tangible things, or Access to or disclosure of DC, call-associated data, transactional data, Subscriber Information, or associated records.

o. "Managed Network Service Provider" ("MNSP") means any third party that has Access to Principal Equipment for the purpose of:

- (i) Network operation; provisioning of Internet and telecommunications services; routine, corrective, and preventative maintenance, including switching, routing, and testing; network and service monitoring; network performance, optimization, and reporting; network audits, provisioning, creation and implementation of modifications or upgrades; or
- (ii) Provision of DC or operation of DCI, including: customer support; OSS; BSS; Network Operations Centers ("NOCs"); information technology; cloud operations/services; 5G (Software Defined Networking, Network Functions Virtualization, Applications); and data center services and operations.

p. "Network Operations Center" ("NOC") means any locations and facilities performing network management, monitoring, accumulating accounting and usage data, maintenance, user support, or other operational functions for DC.

q. "Personally Identifiable Information" ("PII") means any information that uniquely identifies and correlates to a natural person or can be used to distinguish or trace a natural person's identity, alone, including name, social security number, or biometric records, or when combined with other personal or identifying information that is linked or linkable to a specific individual, including date and place of birth, or parent's surname.

r. "Principal Equipment" or "PE" means all telecommunications and information network equipment (*e.g.*, hardware, software, platforms, operating systems, applications, and protocols) that supports core telecommunications or information services, functions, or operations.

s. "Security" means a condition that results from the establishment and maintenance of protective measures that enable an organization to perform its mission or critical functions despite risks posed by threats to its use of systems. Protective measures may involve a combination of deterrence, avoidance, prevention, detection, recovery, and correction that should form part of the organization's risk management approach.

t. "Security Incident" means:

- (i) Any known or suspected breach of this LOA, including a violation of any approved plan, policy, or procedure under this LOA;

- (ii) Any unauthorized Access to, or disclosure of, U.S. Records;
- (iii) Any unauthorized Access to, or disclosure of, information obtained from or relating to Government entities; or
- (iv) Any one or more of the following which affect the Petitioners' computer network(s) or associated information systems:
 - A. Unauthorized disruptions to a service or denial of a service (excluding outages determined after investigation to be caused by weather, wild-life, or other natural causes);
 - B. Unauthorized processing or storage of data;
 - C. Unauthorized modifications to system hardware, firmware, or software, including the identification of vulnerabilities introduced through a cyber supply chain compromise;
 - D. Unplanned incidents that cause activation of Petitioners' Cybersecurity Incident Response Plan(s);
 - E. Attempts from unauthorized sources to Access systems or data if these attempts to Access systems or data may materially affect Petitioners' ability to comply with the terms of this LOA; or
 - F. An unauthorized occurrence that (1) actually or imminently jeopardizes the integrity, confidentiality, or availability of information or an information system; or (2) constitutes a violation or imminent threat of violation of law, security policies, security procedures, or acceptable use policies.

u. "Sensitive Personal Data" ("SPD") means sensitive personal data as set forth in 31 C.F.R. § 800.241.

v. "Subscriber Information" means any information of the type referred to and accessible subject to the procedures set forth in 18 U.S.C. § 2703(c)(2) or 18 U.S.C. § 2709, as amended or superseded.

w. "Service Provider" means any entity (to include but not be limited to any parents, subsidiaries, and affiliates of Petitioners, as well as contractors, subcontractors, or Government agencies) that provides any service that could result in the entity having Access to DCI, DC, Lawful U.S. Process, PE, or U.S. Records. Such services include, but are not limited to: MNSP services; NOC(s) services; network maintenance management or monitoring services; billing or customer support services; advertising, sales, marketing, and distribution services; network security services; assistance in fulfilling the obligations of this LOA; and providing, installing, operating, updating, repairing, managing, monitoring, or maintaining PE.

x. "U.S. Person" means any United States citizen or alien lawfully admitted for permanent residence in the United States.

y. “U.S. Records” means Petitioners’ customer billing records, Subscriber Information, PII, Sensitive Personal Data, CDRs, IPDRs, CPNI, Geolocation Data, and any other information used, processed, or maintained in the ordinary course of business related to the services that Petitioners offer within the United States, including information subject to disclosure to a U.S. federal or state governmental entity under the procedures set forth in 18 U.S.C. §§ 2703(c)-(d) and 18 U.S.C. § 2709.

Personnel

2. Petitioners agree to designate and maintain a U.S. law enforcement point of contact (“LEPOC”) in the United States who will be subject to prior approval by USDOJ, including the FBI. The LEPOC shall be a U.S. citizen residing in the United States or its territories unless USDOJ otherwise agrees in writing. The LEPOC must be approved by the FBI to receive service of Lawful U.S. Process including for U.S. Records, and, where possible, to assist and support lawful requests for Electronic Surveillance or production of U.S. Records by U.S. federal, state, and local law enforcement agencies.

3. Petitioners agree to provide the LEPOC’s PII to USDOJ within **15 days** of the Date of FCC Approval. USDOJ agrees to object or non-object within **15 days** from receiving the LEPOC’s PII. Petitioners will appoint the nominee as LEPOC within **15 days** of receiving USDOJ’s non-objection. If USDOJ objects to the LEPOC nominee, Petitioners will nominate a different candidate within **15 days** of such objection. Petitioners agree to address concerns raised by USDOJ regarding the selection and identity of the LEPOC.

4. Petitioners agree to notify USDOJ, including the FBI, in writing at least **30 days** prior to modifying its LEPOC for USDOJ and FBI objection or non-objection. For those cases involving the unexpected firing, resignation, or death of the LEPOC, written notice will be provided within **five days** of such event. Under these circumstances, USDOJ and FBI will object or non-object to the replacement LEPOC within **30 days** of notification.

5. Petitioners agree that the designated LEPOC will have Access to all U.S. Records, and, in response to Lawful U.S. Process, will make such records available promptly and, in any event, will respond to such Lawful U.S. Process no later than **five days** after receiving it unless USDOJ grants an extension, or the Lawful U.S. Process itself establishes a deadline that is later than **five days** following receipt.

6. Petitioners agree to implement, either directly or through a vendor, a process to screen existing or newly hired personnel who have Access to DC, DCI, Lawful U.S. Process, or U.S. Records (*e.g.*, Petitioners’ personnel, personnel of the Petitioners’ affiliates, PE vendor personnel, or Service Provider personnel). The personnel screening process shall include background investigations, public criminal records checks, or other analogous means to ascertain a person’s trustworthiness. Petitioners further agree to provide USDOJ with a written description of this personnel-screening process no later than **60 days** after the Date of FCC Approval. USDOJ will object or non-object within **60 days** of receiving such description.

7. **Petitioners Foreign Persons with Access:** Petitioners agree to notify USDOJ of all Foreign Persons with Access (including, but not limited to, Foreign personnel, Foreign owners/managers, and Foreign personnel of affiliates).² Within **30 days** of the Date of FCC Approval and thereafter annually

² Service Provider Foreign Persons with Access (including, but not limited to, Service Provider Foreign employees and contractors) are covered in the Service Providers Section below, including Paragraph 34.

with the Annual Report, Petitioners will provide USDOJ with the following information about such Foreign Persons with Access:

- a. The number of Foreign Persons with Access;
- b. The countries of citizenship of the Foreign Persons with Access;
- c. The country(ies) from which they have Access;
- d. A description of their information and/or systems Access (*e.g.*, DCI, DC, Lawful U.S. Process, or U.S. Records); and
- e. A description of the type of Access (Read or Read/Write).

USDOJ will object or non-object within **30 days** of receiving notice. Upon USDOJ request, Petitioners further agree to provide PII to USDOJ, in a format that USDOJ will identify, for each Foreign Person with Access so identified. USDOJ will object or non-object within **30 days** of receiving the requested PII.

Security Officer

8. Petitioners agree to designate and maintain a security officer ("Security Officer") who is a non-dual United States citizen residing in the United States and may also designate and maintain an alternate security officer ("Alternate Security Officer") to fulfill the responsibilities of the Security Officer in the event of the Security Officer's unavailability. The proposed Security Officer (and any Alternate Security Officer) must be eligible to obtain and maintain a "Secret" level or higher U.S. Government security clearance immediately upon appointment. The Security Officer and any Alternate Security Officer will have the appropriate authority and skills to implement the terms of this LOA and to address security concerns identified by USDOJ. The Security Officer and any Alternate Security Officer will have the appropriate senior-level corporate authority within Element8 or AtLink to perform their duties under this LOA. The Security Officer and any Alternate Security Officer will possess the necessary resources and skills to enforce this LOA, train Petitioners' personnel on compliance with this LOA, act as a liaison to USDOJ regarding compliance with this LOA, and address any national security or law enforcement issues arising during Petitioners' ordinary course of business. Petitioners will provide the Security Officer and any Alternate Security Officer with Access to Petitioners' business information that is necessary for the Security Officer and any Alternate Security Officer to perform their duties.

9. The Security Officer will be available 24 hours per day, seven days per week, to respond to and address any national security or law enforcement concerns that USDOJ may raise with respect to Petitioners' or their operations, except that if Petitioners designate an Alternate Security Officer, then in the event that the Security Officer is unavailable, the Alternate Security Officer will be available to respond to and address such concerns. Upon USDOJ request, the Security Officer or, as applicable, Alternate Security Officer, will be available in person within the United States or its territories within **72 hours**, at a date and location, including in a classified setting, as deemed necessary by USDOJ.

10. Petitioners agree to nominate a proposed candidate for Security Officer to USDOJ within **15 days** of the Date of FCC Approval, and thereafter will provide at least **10 days'** notice of a Security Officer's departure, and **30 days'** prior notice of a new Security Officer designation (except in the case of the unexpected firing, resignation, or death of the Security Officer in which case such written notice of such departure or designation must be provided within **five days** of such event). Petitioners further agree to not maintain a vacancy or suspension of the Security Officer position for a period of more than **60 days**. If Petitioners designate an Alternate Security Officer, Petitioners will nominate a proposed

candidate for Alternate Security Officer at least **30 days** prior to the date on which Petitioners propose to designate an Alternate Security Officer. Petitioners agree to provide USDOJ with the following information for the proposed Security Officer (and any Alternate Security Officer) with the nomination: a curriculum vitae or similar professional synopsis of the nominee; and the nominee's PII, to be provided in a format to be identified by USDOJ. Petitioners further agree to include with the nomination a plan for how the proposed Security Officer will ensure Petitioners' employees are appropriately trained in compliance with this LOA. All Security Officer nominations and any Alternate Security Officer nominations will be subject to USDOJ review and non-objection and may be subject to a background check at the sole discretion of USDOJ. USDOJ will object or non-object to the proposed Security Officer or Alternate Security Officer, if applicable, within **30 days** of notification. Petitioners agree to address concerns raised by USDOJ regarding the selection and identity of the Security Officer and any Alternate Security Officer.

Lawful U.S. Process and Requests for Information

11. Petitioners agree to comply with all applicable lawful interception statutes, regulations, and requirements, as well as comply with all court orders and other Lawful U.S. Process for lawfully authorized Electronic Surveillance. Petitioners further agree to certify to USDOJ its compliance with the Communications Assistance for Law Enforcement Act ("CALEA"), 47 U.S.C. §§ 1001-1010, and its implementing regulations, within **30 days** from the Date of FCC Approval.

12. Petitioners agree to provide notice of any material modification to their lawful intercept capabilities to USDOJ within **30 days** of such modification and will re-certify their compliance with CALEA no more than **60 days** following their notice to USDOJ of any material new facilities, services, or capabilities.

13. Upon receipt of any Lawful U.S. Process, Petitioners agree to place any and all information responsive to the Lawful U.S. Process within the territorial boundaries of the United States and otherwise provide information to the requesting officials, in a manner and time consistent with the Lawful U.S. Process.

14. Petitioners agree not to provide, and to take reasonable steps to prevent the disclosure of, Access to, U.S. Records, DCI, or DC, to any Foreign Government, Foreign entity, or Foreign person, without prior written consent of USDOJ, or a court of competent jurisdiction in the United States except with respect to Foreign persons consented to pursuant to Paragraph 7 above.

15. Petitioners agree not to disclose the receipt of Lawful U.S. Process, or compliance with Lawful U.S. Process, to any Foreign Government, Foreign entity, or person not authorized under the Lawful U.S. Process, without prior written consent of USDOJ, or a court of competent jurisdiction in the United States.

16. Petitioners agree to refer any requests for information or Access described in this Section from a Foreign person, Foreign entity, or Foreign Government, including any legal process from a Foreign Government, to USDOJ as soon as possible, but in no event later than **five days** after such a request, or legal process, is received by, or made known to, Petitioners, unless disclosure of the request, or legal process, would be in violation of U.S. law, or in violation of an order of a court of competent jurisdiction in the United States.

17. Petitioners agree not to comply with such requests from Foreign Governments, Foreign entities, and Foreign persons without prior written consent of USDOJ, or an order of a court of competent jurisdiction in the United States.

18. Petitioners agree to ensure that U.S. Records are not subject to mandatory destruction under any Foreign laws.

Security Measures and Plans

19. Petitioners agree to take all appropriate measures to prevent unauthorized Access to U.S. Records, DC, DCI, and Lawful U.S. Process.

20. Petitioners agree to take all appropriate measures to prevent any unlawful use or disclosure of information relating to U.S. Records, DC, DCI, and Lawful U.S. Process.

21. Petitioners agree to prepare: (1) a Cybersecurity Plan; and (2) a comprehensive System Security Plan (“SSP”) (together the “Plans”), each of which shall be guided by the current version of the National Institute of Standards and Technology (“NIST”) Cybersecurity Framework, and incorporate applicable controls found in NIST SP 800-53, NIST SP 800-171, or other international information security standards. Such Plans will be consistent with the recommendations of the Cybersecurity and Infrastructure Security Agency’s (“CISA”) Cross-Sector Cybersecurity Performance Goals (or any subsequent applicable sector specific performance goals). Petitioners will provide copies of the Plans to USDOJ within **60 days** of the Date of FCC Approval for objection or non-objection. Petitioners agree that the Plans will be updated when appropriate to conform with evolving information security standards, and that Petitioners will make additional modifications to these Plans, if requested by USDOJ, and work with USDOJ to implement such modifications. USDOJ will object or non-object within **90 days** of receiving each version of the Plans.

22. Petitioners agree that the Plans will include, among other things, policies relating to their information security, supply chain security, cybersecurity incident response (including detailing when incidents are to be reported to the relevant authorities, *e.g.*, CISA and FBI), remote Access, network segmentation, physical security, cybersecurity, third-party contractors, peering and routing security, vendor and Service Provider screening and Access, maintenance and retention of system logs, periodic control assessments, third-party cybersecurity audits, and protection of Lawful U.S. Process, U.S. Records, DCI, and DC. Petitioners further agree to include Petitioners’ plans regarding new contracts or amendments to existing contracts with Service Providers requiring them to agree to the conditions set forth in Paragraph 36 of this LOA.

23. Petitioners further agree to take timely and appropriate remedial measures, as recommended by the U.S.-Computer Emergency Readiness Team/CISA, an Information Sharing and Analysis Center (“ISAC”), or similar U.S. authority, to respond to and recover from any cyber or supply chain incident and mitigate vulnerabilities.

U.S. Records and DC Storage

24. Petitioners agree to notify USDOJ at least **30 days** prior to changing the location for storage of U.S. Records or DC. USDOJ will object or non-object within **30 days** of receipt of Petitioners’ submission. Such notice shall include:

- a. A description of the type of information to be stored in the new location;

- b. The custodian of the information (even if such custodian is one of the Petitioners);
- c. The location where the information is to be stored;
- d. Updated SSP and Cybersecurity Plans detailing the physical/logical protections at the new location; and
- e. The factors considered in deciding to store that information in the new location.

Countries from which U.S. Records, Lawful U.S Process, DC, and DCI are Accessed

25. Within **30 days** of the Date of FCC Approval, Petitioners will provide a list of countries from which U.S. Records, Lawful U.S. Process, DC, and the DCI are Accessed (by any natural person or entity, including but not limited to Petitioners personnel and Service Provider personnel). USDOJ will object or non-object within **30 days** of receiving such notice. Petitioners will notify USDOJ **30 days** in advance of permitting any Access to U.S. Records, Lawful U.S. Process, DC, and the DCI from a new country from which Access was not previously approved. USDOJ will object or non-object within **30 days** of receiving such notice.

Reporting Incidents and Breaches

26. Petitioners agree to report to USDOJ as soon as possible, and in any event no later than **72 hours**, after they learn of information that reasonably indicates a known or suspected:

- a. Security Incident;
- b. Unauthorized Access to, or disclosure of, any information relating to services provided by Petitioners, or referring or relating in any way to Petitioners' customers in the United States or its territories;
- c. Any unauthorized Access to, or disclosure of, DC in violation of federal, state, or local law; or
- d. Any material breach of the commitments made in this LOA.

27. Petitioners agree to require any Service Provider to disclose to Petitioners any data breach of any U.S. Records or DC, or any loss of U.S. Records or DC, whether from a data breach, or other cause, within **72 hours** of the Service Provider discovering the breach or loss. Petitioners agree further to require any Service Provider to disclose to Petitioners, within **72 hours** of discovery, any critical exposure, threats, and vulnerabilities associated with the products or services provided to Petitioners that are the result of the insertion of counterfeits, unauthorized production, tampering, theft, or insertion of malicious software and hardware into such products or services or into the Service Providers' supply chain.

28. Petitioners agree to notify USDOJ, including the points of contact ("POCs") listed in this LOA, in writing of any Security Incident or breach described in this LOA. Such notification shall take place no later than **72 hours** after Petitioners have knowledge, or is informed by a Service Provider, that the incident, intrusion, or breach has taken or is taking place, or sooner when required by statute or

regulations. Petitioners will share with USDOJ the results of any internal or third-party investigation or review of the incident, if any, including, but not limited to, any steps taken to mitigate the damage and prevent further Security Incidents or breaches.

29. Petitioners agree to notify the FBI and U.S. Secret Service as provided in 47 C.F.R. § 64.2011 within **seven business days** after reasonable determination that a person without authorization, or in exceeding his or her authorization, has gained Access to, used, or disclosed CPNI, whether through Petitioners' network or that of a third party used by Petitioners, and shall electronically report the matter to the central reporting facility through the following portal: <https://www.cpnireporting.gov>.

Principal Equipment

30. Petitioners agree to provide USDOJ an initial Principal Equipment list within **30 days** of the Date of FCC Approval. USDOJ will object or non-object to the Principal Equipment within **60 days** of receipt.

31. Petitioners agree to notify USDOJ in writing at least **30 days** prior to introducing any new Principal Equipment of a different make or model than the Principal Equipment identified and approved pursuant to Paragraph 30, or subsequently approved by USDOJ pursuant to this paragraph, or modifying any of its Principal Equipment. USDOJ will object or non-object to such new Principal Equipment or modification to the Principal Equipment within **30 days** of receipt of notice. In circumstances requiring replacement of equipment to maintain normal operations, Petitioners may, without prior notice, substitute for existing Principal Equipment with new equipment produced by the same manufacturer (which has previously been disclosed to USDOJ and cleared without objection pursuant to the procedures in Paragraphs 30 and 32 of the LOA), as long as USDOJ is notified of the replacement equipment no later than 72 hours after replacement occurs. Petitioners may also implement routine necessary patches from existing vendors already approved by USDOJ. Once every calendar quarter, Petitioners shall provide notice to USDOJ of any material software updates that have occurred during that quarter.³

32. The initial Principal Equipment list submitted pursuant to Paragraph 30 and any subsequent notices submitted pursuant to Paragraph 31 shall include the following information, in a format that USDOJ will identify:

a. PE Manufacturer Information:

- (i) Name;
- (ii) Business Address;
- (iii) EIN, if available;
- (iv) Webpage Address URL, if available.

b. Equipment Information:

- (i) Make;
- (ii) Model/Version Number;
- (iii) Function;
- (iv) Access to U.S. Records, Lawful U.S. Process, DC, and DCI;

³ For purposes of this paragraph, a "software update" is material if there is a change in either of the first two numbers comprising a semantic versioning identifier. For example, a change from 1.5 to 2.0 or a change from 2.1 to 2.2 would be notifiable, but not an update from 2.1.1 to 2.1.2.

- (v) Country where located;
- (vi) Owner (if rented).

- c. Notice if the equipment includes logic-bearing (*e.g.*, readable, writable, programmable) hardware, firmware, or software that was designed, produced, or maintained by suppliers owned or controlled by, or subject to the jurisdiction or direction of, a U.S. Foreign Adversary (as designated by the Secretary of Commerce under Executive Order 13873 or any U.S. federal agency given subsequent comparable authority);
- d. Notice if the equipment includes logic-bearing (*e.g.*, readable, writable, programmable) hardware, firmware, or software from a provider listed on the FCC's Covered List (*see* FCC, *List of Equipment and Services Covered by Section 2 of the Secure Networks Act*, <https://www.fcc.gov/supplychain/coveredlist>),⁴ the Commerce Department's Entity List, or subject to a removal or exclusion order issued by the Secretary of Homeland Security, the Secretary of Defense, or the Director of National Intelligence pursuant to the SECURE Technology Act, 41 U.S. Code § 1321 et seq.

33. Petitioners agree to provide USDOJ with updated network diagrams and topology maps showing all facilities, devices, interfaces, Points of Presence ("PoPs"), exchange points, and NOCs within **60 days** from the Date of FCC Approval.

Service Providers

34. Petitioners agree to provide USDOJ with a list of all their Service Providers within **30 days** of the Date of FCC Approval. USDOJ will object or non-object to this initial Service Provider list within **60 days** of receipt.

35. Petitioners agree to notify USDOJ in writing no less than **30 days** prior to the use of any new Service Provider. USDOJ will object or non-object to any new Service Provider within **30 days** of receiving notice.

36. Petitioners' initial Service Provider list submitted pursuant to Paragraph 34 and any subsequent notices submitted pursuant to Paragraph 35 shall include the following information for each Service Provider, in a format USDOJ will identify:

- a. Company Name;
- b. Business Address;
- c. EIN, if available;
- d. Webpage Address URL, if available;
- e. Country of Incorporation;
- f. Principal Place of Business;
- g. Description of Service Provided;
- h. Information and/or Systems Access (*e.g.*, DCI, DC, Lawful U.S. Process, or U.S. Records);
- i. Type of Access (Read or Read/Write);
- j. The number of Service Provider Foreign Persons with Access to DCI, DC, Lawful U.S. Process, or U.S. Records and each country from which they have or will have Access;
- k. Any Foreign Government ownership, control, or affiliations;

⁴ See also Section 2(a) of the Secure and Trusted Communications Networks Act of 2019, Pub. L. No. 116-124, 133 Stat. 158 (2020) (codified as amended at 47 U.S.C. §§ 1601-09); 47 C.F.R. § 1.50000 et seq.

- I. Confirmation that the Service Provider is contractually required, or information detailing a timeline for the adoption of the contractual requirements for the Service Provider, to do the following:
 - (i) Screen Employees with Access (pursuant to Paragraph 6 of this LOA);
 - (ii) Report Security Incidents to Petitioners (pursuant to Paragraph 27 of this LOA);
 - (iii) Inform Petitioners of the countries from which Service Provider personnel have Access, and inform Petitioners more than **30 days** in advance of a change in the countries from which Service Provider personnel will have Access;
 - (iv) Inform Petitioners of the number of Service Provider Foreign Persons with Access to DCI, DC, Lawful U.S. Process, or U.S. Records and the countries from which they have or will have Access (pursuant to Paragraphs 34-36 and 48 of this LOA); and
 - (v) Conform to Petitioners' security policies regarding Service Provider Access.

Upon USDOJ request, Petitioners will provide additional information about the Service Provider, which may include but not be limited to PII for Service Provider Foreign Persons with Access. USDOJ will object or non-object within **30 days** of receiving the additional information requested.

37. Petitioners agree to provide at least **30 days'** advance notice prior to changing the service offerings or support from a previously-identified Service Provider or vendor (*i.e.*, where a previously-identified Service Provider or vendor will be offering support in a previously unidentified way). USDOJ will object or non-object to the proposed change in service offerings or support within **30 days** of receipt of notice.

Network Operations Centers

38. Petitioners agree to provide USDOJ with the location of its NOC(s) within **30 days** of the Date of FCC Approval. USDOJ will object or non-object to the NOC location(s) within **30 days** of receiving notice. Petitioners will provide the address, owner (even if Petitioners), Principal Equipment, and MNSP(s) (as well as any new Service Providers) of the NOC(s) with the notification.

39. Petitioners agree to notify USDOJ in writing at least **60 days** prior to changing the location of its NOC(s). USDOJ will object or non-object to any new NOC location within **60 days** of receiving notice of the proposed location change. Petitioners will provide the address, owner (even if Petitioners), Principal Equipment, and MNSP(s) (as well as any new Service Providers) of the new NOC(s) with the notification, as well as appropriately updated SSP and Cybersecurity Plans.

Change in Ownership and Service Portfolio

40. Petitioners agree to provide USDOJ notice of any changes to their business(es), including but not limited to corporate structure changes, ultimate beneficial ownership changes,⁵ corporate name changes, business model changes, corporate headquarter location changes, or business operation

⁵ For the purposes of this paragraph, "ownership changes" includes, but is not limited to, any new investment by, or change in existing rights of, any ultimate beneficial owner of either Element8 or AtLink that results in such beneficial owner obtaining a right to: (a) manage or control the activities of either Petitioner; and/or (b) gain Access to either Petitioners' DC, DCI, U.S. Lawful Process, or U.S. Records. With respect to any calendar month during which any non-U.S. ultimate beneficial owner of either of the Petitioners has acquired a direct or indirect equity interest in either of the Petitioners of five percent or more, Petitioners shall provide an updated list of all non-U.S. ultimate beneficial owners holding or controlling a direct or indirect equity stake (voting or non-voting) of five percent or more in either of the Petitioners no later than the end of the following calendar month.

location changes no less than **30 days** in advance of such change. Petitioners also agree to provide USDOJ notice within **30 days** of initiating any bankruptcy proceeding or any other legal proceeding undertaken for the purpose of liquidating, reorganizing, refinancing, or otherwise seeking relief from all or some of Petitioners' debts.

41. Petitioners agree that this LOA is binding upon, and inures to the benefit of, Petitioners and their respective successors and assigns. For purposes of this LOA, successors and assigns includes any corporate name changes. Petitioners may not assign any obligation under this LOA without the prior written consent of USDOJ.

42. Petitioners agree to provide USDOJ notice of any material change to its current portfolio of service offerings, including offering other services beyond its current service portfolio, no less than **30 days** in advance of such change. USDOJ will object or non-object within **30 days** of receiving such notice.

Third-Party Compliance Audit

43. At its sole discretion, but no more frequently than once every calendar year unless the original audit is found by USDOJ to have been unsatisfactory, USDOJ may request that Petitioners undergo a neutral third-party compliance audit of LOA compliance (including any plan, policy, or procedure approved under this LOA).

44. Within **60 days** of USDOJ requesting a third-party audit, Petitioners will nominate a third-party auditor. Within **60 days** of the nomination, USDOJ will approve or disapprove the nominated third-party auditor. As part of the auditor nomination and approval process, Petitioners will disclose information regarding Petitioners' and the nominated auditor's pre-existing relationship (if any).

45. Petitioners will be solely responsible for any costs associated with any third-party audit carried out pursuant to this Section.

46. Petitioners will ensure the selected third-party auditor submits, within **15 days** of USDOJ non-objection to the auditor and prior to commencing the audit, a methodology and proposed scope of audit, both of which will be subject to USDOJ approval. The statement of work shall allow for direct communication between USDOJ and the third-party auditor, without notice to or participation of Petitioners.

47. Petitioners will ensure that the executed engagement agreement with the third-party auditor is provided to USDOJ within **five days** of execution.

48. The third-party auditor will promptly deliver to USDOJ and Petitioners all reports and related information generated or gathered during its review that relate directly to Petitioners' compliance with the terms of this LOA and will agree to meet independently with USDOJ upon request. Unless otherwise agreed to by USDOJ, the Compliance Audit report shall be submitted to USDOJ by the auditor at the same time it is submitted to Petitioners.

Annual Report

49. Petitioners agree to provide an annual report to USDOJ regarding its compliance with this LOA, to include:

- a. If Petitioners submitted no notifications to USDOJ pursuant to this LOA during the preceding year, a certification that there were no developments that Petitioners were required to report under the LOA during the year;
- b. A description of Petitioners' handling of U.S. Records, DC, and Lawful U.S. Process (*i.e.*, whether handled properly and in accordance with the assurances contained herein), including a current list of all Petitioners Foreign Persons with Access to U.S. Records, Lawful U.S. Process, DC, and DCI;
- c. A list of all countries from which U.S. Records, DC, Lawful U.S. Process, and the DCI were Accessed in the prior year;
- d. A current Principal Equipment list containing the information described in Paragraph 32;
- e. A current Service Provider list containing the information described in Paragraph 36,
- f. Notice if Petitioners have used in the past year, or plan to use in the future, logic-bearing (*e.g.*, readable, writable, programmable) hardware, firmware, or software in its DCI, PE, or other systems supporting DC, Lawful U.S. Process, DC, or U.S. Records, that was designed, produced, or maintained by suppliers owned or controlled by, or subject to the jurisdiction or direction of, a U.S. Foreign Adversary (as designated by the Secretary of Commerce under Executive Order 13873 or any U.S. federal agency given subsequent comparable authority);
- g. Notice if Petitioners have used in the past year, or plan to use in the future, products or services from an entity listed on the FCC's Covered List (*see* FCC, *List of Equipment and Services Covered by Section 2 of the Secure Networks Act*, <https://www.fcc.gov/supply-chain/coveredlist>), the Commerce Department's Entity List, or subject to a removal or exclusion order issued by the Secretary of Homeland Security, the Secretary of Defense, or the Director of National Intelligence pursuant to the SECURE Technology Act, 41 U.S.C. § 1321 et seq.;
- h. A description of any LOA compliance trainings conducted in the prior year;
- i. A list of any relationships with Foreign-owned telecommunications partners, including any network peering (traffic exchange) or interconnection relationships;
- j. Updated network diagrams and topology maps showing all facilities, devices, interfaces, PoPs, exchange points, and NOCs;
- k. Updated SSP and Cybersecurity Plans and a description of any changes to the Plans during the reporting period;
- l. Certification that Petitioners' security practices meet or exceed the current version of CISA's Cross-Sector Cybersecurity Performance Goals (or any subsequent applicable sector specific performance goals);

- m. An updated organizational chart showing all owners with a five percent or greater ownership share in either of the Petitioners;
- n. A list of any Security Incidents during the prior year;
- o. A re-identification of any location(s) in which U.S. Records are stored and a description of the types of U.S. Records collected and stored;
- p. A re-identification of the name and contact information of the LEPOC, Security Officer, and Alternate Security Officer, if applicable;
- q. A list of all filings or notices to the FCC in the prior year, and describing in categorical terms applications for new or modified wireless licenses and routine reports and submissions required by the FCC, and a copy of these filings if requested by USDOJ;
- r. Certification of compliance with CALEA and any other applicable U.S. lawful interception statutes, regulations, and requirements;
- s. A description of the services that Petitioners provide in the United States to include: the specific services provided using an FCC license or authorization and other services it provides in the United States that do not require FCC licenses or authorizations. Such a description should also specifically detail any services provided to Government or critical infrastructure customers; and
- t. Notification of any reasonably foreseeable matter that would give rise to an obligation under this LOA.

The annual report will be due one year after the Date of FCC Approval and every year thereafter. Petitioners agree to send electronic copies of the annual report and all notices and communications required under this LOA to the following individuals or any other individuals that USDOJ identifies to Petitioners in the future:

- Nadia Asanchev, USDOJ (at Nadia.Asanchev@usdoj.gov), and
- Tyler Wood, USDOJ (at Compliance.Telecom@usdoj.gov).

Upon USDOJ request, Petitioners agree to provide USDOJ with paper copies of any annual report, notices, or communications required under this LOA.

Site Visits

50. Petitioners agree to permit USDOJ's requests for site visits and information, approve all requests for USDOJ to conduct on-site interviews of Petitioners' employees, and provide all documents necessary to USDOJ to verify the implementation of and compliance with the terms of this LOA, or to identify grounds for modification of this LOA.

General Provisions

51. If USDOJ finds that the terms of this LOA are inadequate to resolve any national security or law enforcement risks, Petitioners agree to resolve USDOJ's concerns, according deference to USDOJ's views on the need for modification. Rejection of a proposed modification shall not alone be dispositive, but failure to resolve national security or law enforcement concerns may result in a request that the FCC modify, condition, revoke, cancel, terminate, or render null and void any relevant license, permit, or other authorization granted by the FCC to Petitioners or their successors-in-interest, or any other appropriate enforcement action required to address the concern.

52. Petitioners agree that in the event that Petitioners breach the commitments set forth in this LOA, to include conduct contrary to timely USDOJ objection to any notice submitted pursuant to this LOA, a recommendation may be made that the FCC modify, condition, revoke, cancel, enter other declaratory relief, or render null and void any relevant license, permit, or other authorization granted by the FCC to Petitioners or their successors-in-interest, in addition to pursuing any other remedy available by law or equity.

53. For purposes of counting days in this LOA, the day of the event that triggers the period is excluded, but every day thereafter is counted, including intermediate Saturdays, Sundays, and legal holidays. Include the last day of the period, but if the last day is a Saturday, Sunday, or legal holiday, the period continues to run until the end of the next day that is not a Saturday, Sunday, or legal holiday.

54. Any non-objection, consent, or approval provision applicable to USDOJ pursuant to this LOA shall be tolled during a lapse in appropriations or any time when the Federal Government in the greater Washington, D.C. area is closed.

55. Petitioners agree to permit disclosure of information submitted to the FCC in confidence pursuant to 47 C.F.R. § 0.442 to federal government departments, agencies, and offices whose principals are listed in Section 3 of Executive Order 13913.

56. Petitioners understand that if USDOJ, with non-objection from the Committee for the Assessment of Foreign Participation in the United States Telecommunications Services Sector ("Committee"), finds the national security and law enforcement risks associated with this application have decreased such that they no longer warrant mitigation, USDOJ may terminate this LOA by notice to the FCC. Petitioners further understand that even after such a termination, under Section 6 of Executive Order 13913, the Committee may conduct a license review for additional or new risks to U.S. national security and law enforcement interests at any time. Termination of a mitigation agreement does not relieve Petitioners from liability for any breach of this LOA occurring while it was in effect.

57. Petitioners understand that, upon execution of this LOA by an authorized representative or attorney, or shortly thereafter, the FCC will be notified that there is no objection to grant of the Application.

For Element8 Technology Investment Group Inc.

A handwritten signature in black ink, appearing to read "Kevin Grace", written over a horizontal line.

Kevin Grace, CEO

Element8 Technology Investment Group Inc.

May 2, 2024

For AtLink Services LLC

(Name, Title)

(Company)

(Date)

For Element8 Technology Investment Group Inc.

(Name, Title)

(Company)

(Date)

For AtLink Services LLC



Samual T. Curtis, CEO

@Link Services, LLC (a/k/a AtLink Services, LLC)

2 MAY 2024